



POLICE DEPARTMENT

June 18, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer George Sotomayor
Tax Registry No.939509
Manhattan Court Section
Disciplinary Case No. 83863/08

The above-named member of the Department appeared before me on March 13, 2009, charged with the following:

1. Said Police Officer George Sotomayor, while assigned to the 40th Precinct, on or about March 8, 2008, at a location known to this Department, in Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department to wit: said Officer was involved in an off-duty verbal and physical altercation with an individual known to this Department. (*As amended*)

PG 203-10 Page 1, Paragraph 5 – GENERAL REGULATIONS

The Department was represented by Beth Douglas, Esq. Department Advocate's Office and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty as charged.

Introduction

It is not disputed that as of March, 2008, the Respondent and Chayana Rodriguez had been romantically involved for about one year. On the evening of March 7, 2008, and during the early morning hours of March 8, 2008, the Respondent and Rodriguez were together inside [REDACTED]. Police Officer Louise Rodriguez and Chayana Rodriguez [REDACTED].

The Department's Case

The Department called Police Officer Louise Rodriguez and Sergeant Douglass Maresca as witnesses and offered the statement of Chayana Rodriguez.

Police Officer Louise Rodriguez

Police Officer Rodriguez, assigned to the [REDACTED] Precinct, testified that she and the Respondent were in the same class at the Police Academy and that they were both assigned to the [REDACTED] Precinct. Rodriguez recalled that at 9:00 p.m. on March 7, 2008, she received a text message from Chayana stating that she was "not feeling well." At 2:00 a.m. on March 8, 2008, Chayana called her and stated that "my nose is broken" and that "I'm with him." Chayana, who sounded frightened, asked to be picked up and whispered an address which Rodriguez determined was the Respondent's address.

Rodriguez recalled that she and her sister Evelyn went to the [REDACTED] Precinct which she mistakenly believed was the Respondent's precinct of residence. The desk officer at the 49 Precinct checked the Respondent's address and then directed them to the [REDACTED] Precinct. When they arrived at the 45 Precinct, the desk officer told them that their [REDACTED]

was being brought to the stationhouse. When Chayana arrived at the ■ Precinct, she told Rodriguez that the Respondent had punched her, thrown her down onto the floor and kicked her while she was on the floor as he yelled at her to "get the fuck up."

On cross-examination, Rodriguez conceded that when Chayana called her she did not mention the Respondent by name or say that she was with the Respondent or that the Respondent had broken her nose. Rodriguez recalled that she and her sister Evelyn arrived at the ■ Precinct over an hour after her telephone conversation with Chayana. Rodriguez conceded that at her official Department interview, which was conducted at 9:30 a.m. on March 8, 2008, she did not tell her interviewers what Chayana had said to her at the 45 Precinct, even though her interviewers had concluded the interview by asking her whether she had anything else she wished to add. Rodriguez recalled that a few months prior to March 8, 2008, Chayana had tried to commit suicide by taking pills. When Rodriguez arrived at the hospital, the Respondent was there. Even though during their phone conversation Chayana had not told her that it was the Respondent who had broken her nose, Rodriguez conceded that at her official Department interview she was confronted with the fact that she had told the desk officer that an "MOS" had broken her sister's nose.

Sergeant Douglass Maresca

Sergeant Maresca testified that he is assigned to the Bronx Investigations Unit (BIU) and that on March 8, 2008, he, Deputy Inspector Collins and Sergeant Olsen of BIU accompanied the Duty Captain to the ■ Precinct to conduct an investigation of a domestic dispute involving a member of the service who he learned was the Respondent.

They arrived at the ■ Precinct after 6:00 a.m. Chayana Rodriguez was there. He observed "a visible bruise" on the "end" of Chayana's nose and he saw that "she also had some red marks on both her arms in the wrist/forearm area." Photos were taken of Chayana's face. A female police officer then escorted Chayana into the female bathroom where the officer took photos of Chayana's bare arms. The female police officer directed Chayana to pull down her blouse and then took a photo of her chest area. [Department's Exhibit (DX) 2] [These photos show a blue-colored bruise covering the tip of Chayana's nose; a red bruise on her chest between her breasts; and redness on her wrists].

At 0930 hours, a tape-recorded interview of Chayana Rodriguez (DX 1) was conducted by Sergeant Maresca, Deputy Inspector Collins, the Duty Captain and Sergeant Olsen.

On cross-examination, Sergeant Maresca testified that he did not believe that an ambulance had responded to the ■ Precinct on March 8, 2008. After he was shown a Prehospital Care Report (PCR) prepared by an Emergency Medical Technician (EMT) on March 8, 2008 and signed by Chayana Rodriguez (RX A)[which states "ecchymosis & swelling noted @ nose"], he confirmed that Chayana refused medical attention, that her injuries were "not so bad that we would force her to go to the hospital," and that the EMT wrote on the PCR that Chayana stated that "she had argument w/boyfriend, denies assault, doesn't remember how injury happened, she probably hit herself accidentally." He testified that this PCR was not in his case file and that he was aware that the investigation into this incident was closed as partly substantiated but did not substantiate a "domestic assault." He did not prepare the UF 49 report regarding this incident that was sent to the First Deputy Commissioner's office.

Chayana Rodriguez

At the tape-recorded interview of Chayana Rodriguez (DX 1), Sergeant Olsen commenced the interview by asking her, "[REDACTED] has told us that she received a text message from you at about midnight, something to the effect that you weren't feeling well and that there was some sort of issue. Can you explain to us why you called [REDACTED]?" Chayana responded, "Because I was, it was ... like I was drinking. But I remember texting her and telling her that I didn't feel good because all the arguments that we were having, me and him, like I didn't really explain to her what happened at the time because she doesn't really like him." Chayana explained that she had slept over at the Respondent's residence and that on the evening of March 7, 2008, she cooked and served him dinner "and then he decides to go to a barber shop and get a haircut, shave or whatever."

When he came back to the residence at about 9:00 p.m., "I was dinking wine, but I wasn't like in an argument, I wasn't like argumentative or anything like that. But he looked like he was upset for some reason. I wasn't really sure why he was upset." When she was asked, "How much wine did you drink?" she responded, "A lot. I probably, like by the time he came home, I probably drank like the whole bottle...the big one, the White Zinfandel, the big one," a magnum? The Respondent bought a bottle of "Hennessy...I don't know what size. He bought that for himself, but he didn't even drink. He probably drank like two cups..."

She recalled that she "felt weird because he looked pissed off" and she did not know why. He repeatedly questioned her as to whether she loved him and she told him,

“If you’re going to keep questioning me and all this I think that it’s better that we don’t continue this relationship. And you can just do whatever you want, and I do whatever I want and we just remain friends.”

After she said this to him, “He got so mad and then he came on me...he grabbed... my arm and then he just threw me on the floor...that’s how my nose...hit his elbow I believe...I just felt like a boom you know... ‘cause I was like trying to get him off of me, the way he was grabbing me.” She was struggling with him trying to break free from his grasp when his elbow or his arm hit her in the nose as he threw her to the floor. She was crying and he was screaming and cursing telling her, “Get the F up.” She “tried getting up.” They were “still arguing and then I hit him...and I told him not to touch me.” He told her that “he don’t care that he’ll fuck me up...that he doesn’t care ‘cause I don’t love him, that he’ll punch me in my face.” When she was asked if he had punched her in the face, she stated that he did not punch her in the face but that he had asked her, “Do you want me to punch you in your face?” because of the way she was talking to him. They “kept arguing probably five more minutes and then he went to his room. When he went to his room he took my phone.” She used “his house phone” to call her half sister. She “told her to come pick me up.”

The Respondent’s Case

The Respondent testified in his own behalf.

The Respondent

The Respondent is a former Marine who served a nine month tour of duty in Iraq and a nine month tour of duty in Afghanistan. The Respondent recalled that on March 7,

2008, Chayana "found my ex-girlfriend's phone number on my caller ID." After they had dinner at his residence that evening, Chayana "kept questioning" him about his ex-girlfriend and kept raising "infidelity issues." The Respondent testified that Chayana began drinking wine heavily and became "drunk."

She placed the bottle of wine she was drinking on top of the coffee table in the living room. At about 1:00 a.m., "she got up, she knocked the bottle over, and she tripped over the coffee table which is like really close to my couch because the space is limited in my living room." The wine "went all over the floor, so I had wine all over my wooden floors, and she fell in between the couch and the coffee table," which are about 18 inches apart. When she impacted the floor, "she didn't fall straight on her face. She fell on the side of her face." The Respondent helped her get up off the floor. She told him that her nose was bleeding and so he got her a tissue. The Respondent testified that other than assisting her to get up off the floor, he had no physical contact at all with her that night.

On cross-examination, he testified that when she told him that her nose was bleeding, he looked at her nose and it was not red or swollen.

FINDINGS AND ANALYSIS

It is charged that the Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that, on March 8, 2008, he engaged in an off-duty verbal and physical altercation with [REDACTED] Chayana Rodriguez.

I find the Respondent guilty because I credit the truthfulness of the statements Chayana made when she was interviewed (DX 1) shortly after this incident occurred.

She stated that the Respondent became “so mad” at her that he grabbed her arm, that she was “trying to get him off of me the way he was grabbing me,” and that as she struggled to break free from his grasp, “he threw me on the floor.” As he threw her to the floor, his elbow or his arm hit her nose. She stated that even though she was crying, he screamed and cursed at her and told her, “Get the F up.”

This tape-recorded hearsay statement is believable and highly probative of the charged misconduct because this is not a case where the Department’s proof consists only of an unsupported hearsay statement. Chayana’s claims that the Respondent grabbed her arm so hard that she was unable to break his grasp and that her nose came into contact with his elbow or arm as he threw her onto the floor is directly corroborated by both Sergeant Maresca’s testimony regarding his observations of her arms and her face and by the photographs taken shortly after this incident (DX 2). Sergeant Maresca testified that that he saw red bruises on the wrist area of her arm and that he observed a visible bruise on the end of Chayana’s nose. The photographs depict a black-and-blue bruise on the front of her nose and red bruising on her wrists. Also, the Prehospital Care Report (PCR) prepared by the Emergency Medical Technician (EMT) who responded on March 8, 2008 (RX A) indicates that Chayana’s nose showed ecchymosis and swelling.

Although the PCR indicates that Chayana told the EMT that she was not assaulted, that she didn’t remember how her injury happened, and that she “probably” hit herself accidentally, I do not find that her brief replies to the EMT’s questions serve to refute what she said during her tape-recorded interview, since Chayana did not request medical assistance or want any medical treatment and she only spoke to the EMT because the ambulance came for her, having been summoned by someone else.

The Respondent asserted that Chayana invented her claim that he had grabbed her and threw her to the floor because she became angry at him when she discovered that he still had his ex-girlfriend's phone number on his caller ID. However, if Chayana was inventing a false allegation to make trouble for the Respondent, it is likely that she would have responded affirmatively when she was asked whether the Respondent had punched her in the face. The fact that she responded to this question by stating, "No, he didn't," (DX 1 p. 12) indicates that she was telling the truth at her interview. Also, when she was asked "How much wine did you drink?" she responded, "A lot." This candid response also indicates that she was providing truthful responses to the questions posed to her and gives her statement the ring of truth.

In reaching this determination, I have not relied on that part of Officer Rodriguez' description of what Chayana told her the Respondent had physically done to her which goes beyond what Chayana stated in her interview because the record indicates that Officer Rodriguez did not mention their conversation inside the 45 Precinct at her official Department interview and because the record indicates that Officer Rodriguez had a motive to embellish what the Respondent had done to Chayana. Chayana candidly told her interviewers that her half-sister "doesn't really like" the Respondent and Officer Rodriguez' animus toward the Respondent was evident when she testified that she blamed the Respondent for the fact that her sister had once attempted to commit suicide.

I do not credit the Respondent's testimony that Chayana tripped over his coffee table; fell in between his couch and his coffee table (an area which is only 18 inches wide); impacted the floor not "straight on her face" but "on the side of her face;" and that, other than helping her get up off the floor, he had no physical contact with her at all that

evening. The Respondent's version of this incident does not account for how Chayana sustained a black-and-blue bruise on the front tip of her nose and he offered no plausible explanation for how Chayana suffered bruises on her wrists. As a result, this not a case where the injuries to the complainant are just as consistent with the Respondent's version as to how they came about as they are with the complainant's version as to how they occurred.¹ Here, Chayana's documented injuries are only consistent with her version as to how she sustained them.

Moreover, the Respondent inadvertently betrayed that (at the point in time when Chayana says he grabbed her arms and threw her on the floor) he was angry at Chayana when he testified that after she knocked over her bottle of wine, the wine "went all over the floor, so I had wine all over my wooden floors."

The Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on July 11, 2005. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found guilty of having engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by engaging in an off-duty verbal and physical altercation with his then-girlfriend Chayana Rodriguez.

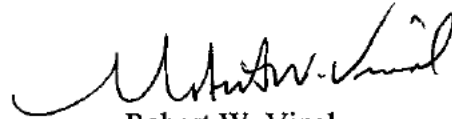
¹ See Vallebuona et al. v. Kerik, 294 AD2d 44 (1st Dept 2002), 742 NYS2d 626, 2002 NY App Div LEXIS 5903.

In Disciplinary Case No. 83203/07 (approved on January 12, 2009), an 18-year member with no prior disciplinary record forfeited 30 vacation days after he was found guilty of having engaged in a physical altercation with his wife, who opted not to appear to testify against him at his trial.

The Respondent was suspended from March 8, 2008 until April 7, 2008, at which time he was restored to duty and placed on modified assignment, a total of 30 days served on suspension.

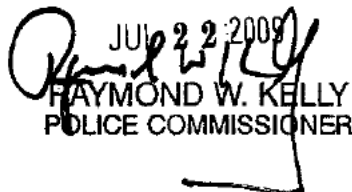
It is recommended that the Respondent be required to forfeit the 30 days he has already served on pre-trial suspension regarding this incident.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED

JUL 22 2009

RAYMOND W. KELLY
POLICE COMMISSIONER